ANTI-CORRUPTION COMMISSION

COMMISSION MEETING FORM

MEETING NO.	27th Commission Meeting
DATE:	11 May, 2021
TIME:	02:00 PM
VENUE:	CP's Chamber

#	AGENDA	DECISIONS
1	Request from the ICAC, Mauritius to share technical details related to online AD system – PPS	Following the best practice sharing on declaration & management of assets, income and liabilities upon the request from ICAC of Mauritius on 14 January 2021, the Commission was apprised on the additional request from ICAC to share technical details related to online AD system. *List of areas requested for sharing is attached.* Considering the on-going collaboration between the two institutions, the Commission approved the request. However, the division concerned was directed to ensure absolute confidentiality of all information related to existing declarants except for sharing of technical details of the online system. While sharing the existing system architecture and features, the Commission advised to inform on the enhancement of current system, which shall further improve system functionality on data authentication and verification. Further, during such experience sharing programs, the PPS was directed to maintain proper protocol including profile of delegates representing respective institutions. Given that the request is from ICAC of Mauritius, the PPS was instructed to maintain proper record of such technical assistance provided in the form of diplomatic correspondence or acknowledgement for future inputs to relevant regional/international reporting.
2	Structure of the Annual Report for the period January 2020 – June 2021 – PPS	With the change in the reporting period of the Annual Report to financial year and specifically to cover 18 months i.e. from January 2020 to June 2021 for the first revised reporting period, the Commission discussed on the draft structure of the report *(attached)* as follows: • Retain the earlier overall structure of the report. • Revisit the presentation of contents under the *Section 1* and *2* of the report to capture deeper analysis of corruption issues and anti-corruption opportunities with emerging socio-economic context. The Commission highlighted that besides reporting on facts and figures, the report must tease subtleties in the society, institutions and mindset of general public against corruption. In addition, the packaging of contents must be raised such that corruption issues are well articulated, analyzed and reasoned in relation to the facts and figures so as to inspire shift in the

		perception against corruption. • Start seeking data and analytical inputs on the respective contents from the Departments, Divisions & Services as per the approved structure of the report. • Include contents related to media management, disruptions caused by pandemic, etc. • Ensure that the Annual Report is printed and submitted to Gokha and Parliament latest by the second week of September 2021.
3	Consolidated Myths vs Facts about the ACC and its function – PPS *As directed in the 23rd Commission Meeting held on 20 April 2021.*	PPS presented the consolidated *Myths vs Facts about the ACC and its function (attached)* to the Commission that was prepared in consultation with Departments, Divisions & Services to be shared with the media during the virtual meeting on Friday (14 May 2021). In principle, the Commission endorsed the *consolidated Myths vs Facts* with few specific directives: • Include more details to substantiate 'Facts' related to complaints management policies, procedures & system; search, seizure & detention; conduct of investigators; perceptions on use of weapon by investigators; investigation & prosecutorial mandate under the ACC; checks & balance to the ACC; exculpatory evidence; and suspension of public servants & moratorium to the properties. • Include all relevant provisions of Acts/ /Rules/Regulations/SOPs including Constitution wherever appropriate to corroborate 'Facts'. • Arrange 'Facts' in bullets to provide clarity. • Use words like 'interview' and 'interrogation' distinctly given the difference in their connotation. • Use legal officer/lawyer instead of legal representative. • Include Commissioner (Media Spokesperson) towards the end to underscore the importance of the meeting.
4	Reorganization of the Branch V functions– Director, DoI *In reference to decision of 22nd Commission Meeting & 20th HRC Meeting held on 13 & 29 April 2021 respectively.*	With due respect to the Commission and HRC's decisions, the Director shared his thoughts on reorganization of current functions of Branch V to undertake investigative mandate given that it was well deliberated in various forums. Building on the achievements and contributions made by Branch V, Director shared the background and rationale behind conceptualization of functions under Branch V in keeping with the challenges faced to sustain operational support to the core investigative function. The conceptual objective of the Branch V was to complement the functions of other Departments/Divisions/Services, rather than duplication, be it in professional development programs or ICT or networking initiatives. The Commission reiterated that the decision was based on the increasing investigation workload and the need to reinforce focus on investigation. With the advent of *Juenlam* app, the Commission emphasizes on maintaining backlog of cases to the least possible, if not reducing to zero. To that effect, strengthening staff strength in the DoI has become a priority. Further, the Commission highlighted contradiction in implementing the policy of 'interface' that rationalizes eligibility of 45% professional allowance in the ACC. In addition, the Commission underscored that it is a well-informed

		decision also drawing reference to report on Competency Based Framework (CBF) and Review of Institutional Development & Performance. The Commission informed that the decision was not to discredit and unravel contributions of Branch V but a strategic reorganization intervention to meet the current demand. Further, given that the ACC is a small organization, strengthening professional development function in the HRS is expected to address the concern of the Department. Nevertheless, the Commission encouraged all to sustain the culture of flat organization by clarifying and communicating on the decisions.

Commissioner **Commissioner** **Chairperson**